

proceeding pending against the decedent at the time of death.” County is required to bring a claim under section 9351.

If there is no personal representative, and the creditor is the personal representative, the clerk shall present the claim to the court or judge for approval or rejection. (Probate Code § 9252(a).) If the court or judge approves the claim, it shall be included in the administration. (*Id.* at § 9252(c).) If the court or judge rejects the claim, the personal representative may bring an action against the estate, in which case, the summons is served on the judge, who then appoints an attorney at the expense of the estate to defend the action. (*Id.* at § 9252(c).)

Furthermore, there is no evidence that County has contacted the Public Administrator in light of the fact that there does not seem to be any heirs or beneficiaries of the estate. The Public Administrator may be best equipped for finding any heirs or beneficiaries of the estate.

The matter is stayed until the County addresses the legal defects pertaining to proceeding against a deceased person’s estate under California law.

2.

CASE #	CASE NAME	HEARING NAME
CVME2508905	SHIR V. BRYANT	CMC AND OSC

Tentative Ruling: Dismiss if no appearance. No declaration was filed pursuant to Local Rule 3116.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2401985	RAMOS VS FCA US LLC	MOTION TO ENFORCE SETTLEMENT BY IVAN GUERRERO RAMOS, OSCAR GUERRERO

Tentative Ruling: Grant in part. The court will sign a judgment with the exact terms agreed upon in the 998 Offer to Compromise. Moving party shall submit a Proposed Judgment Order showing a judgment for plaintiff in amount of \$122,000.00 (or less the amount previously paid) with 10% interest on unpaid settlement funds as of January 2, 2026.